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Do we enjoy universal adult Franchise?

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on 11/10/2014



Image courtesy SBS

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We did enjoy full adult voting rights in our island for 18 years after the far reaching Donoughmore reforms of 1931 (reaching further than many of our leaders, Sinhalese Tamil and Muslim asked for or even wanted). But two Acts of 1949, among the earliest post-independence legislation, took away citizenship and voting rights of about a tenth of the population classified as Indian Tamil. It was mostly the left parties and a minor faction of the All

Ceylon Tamil Congress that opposed these laws. S.J.V. Chelvanayakam was in that minority faction that broke off from the Tamil Congress on this issue. He formed the ITAK (popularly referred to as the Federal party) and campaigned against these laws in the 1952 General Elections. His party was routed and Chelvanayakam himself lost his seat in parliament, clearly indicating that the Ceylon Tamil population had very little identification with the “Indian Tamils”.

Much later, on 30th October 1964, an agreement was signed by Sirimavo Bandaranaike, then our Prime Minister and Lal Bahadur Shastri, in terms of which, over a period of years, more than half of those rendered stateless and vote less by the 1949 legislations, moved to India with Indian citizenship and the others, subject to certain conditions, became entitled to citizenship in our country. It was many years later that the residue of stateless persons in Sri Lanka were granted Sri Lankan citizenship and voting rights. Since then, it is true that no adult citizen of this country is deprived of voting rights. But do we have equal citizenship? Even after the Sirima – Shastri pact there were laws blocking the grant of state land to citizens by registration (in effect, Indian Tamil citizens). That problem has now been resolved, though people of that community continued to suffer many disabilities in respect of education, health, housing, etc. Since targeted reverse discrimination (affirmative action) may be needed to raise the Socio-Economics status of this community, there would be advantages in that community temporarily maintaining an identity distinct from that of Sri Lankan Tamil. It is hoped that within a decade this distinction would cease to be necessary and the two ethnic communities can become one.

In the case of women, although there has never been any gender-based discriminatory laws since the 1931 reforms, the percentage of women elected to political office has been hovering around 5%, and shows no signs of increasing to anywhere near 50%. In fact the percentage of women in parliament is lower in Sri Lanka than in several of our neighboring countries although our female literacy rate is roughly on par with our male literacy rate, and much higher than in any country in South Asia.

What is the objective of extending voting rights for women? Is it merely to enable women to have a voice in electing men to rule them? Even the few women who are elected to parliament are often from political dynasties of which the male leader is no more. This is so in India, Pakistan and Bangladesh too. Though our female literacy rates are comparable to those in most developed countries, for some reason or the other our political leaders are reluctant to nominate women candidates and our voters are reluctant to vote for them unless they are from established political dynasties. This is so even in India, Pakistan and Bangladesh.

It appears that starting from early next year we may have several political elections including the Presidential election and Parliamentary Elections. Full adult franchise will be meaningful only if all significant sections of the population are adequately represented among those elected. To correct this deficiency, political parties need to nominate sufficient numbers of capable women candidates, especially from outside political dynasties. Gender quotas may be unavoidable, at least for several years till the pattern of gender exclusion is broken. Drafting a law to provide for gender quotas (a minimum of 30% for women?) in nominations is easy; much more difficult would be to get such legislation through a parliament dominated by men.

The next and yet more difficult step is to ensure that women are well represented (again, not less than 30% of the total?) among those elected. Gender quotas would be virtually impossible to provide for in countries with single member territorial electorates, as in most democracies. It would be much less difficult in countries like Sri

Lanka that have adopted region – wide multimember electorates. Even in these countries there is a problem in blending quotas for a range of political parties with those for the two genders. With some arithmetic skills on the part of the Legal Draftsman, the Returning Officers and the Commissioner of Elections, the task is manageable. It is not difficult to conceive of several alternative satisfactory schemes to choose from, with some further refinements designed to bring pressure on party leaders to nominate strong women candidates and to campaign vigorously for them (e.g. by rejecting the elections of those women who fail to poll a specified minimum percentage of the total vote, and transferring those entitlements to the highest polling women in other political parties) I need not go in to such details in this article, but if anyone has any doubts regarding the arithmetic feasibility of such provisions, I will try to clear them.

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